

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harold Rodriguez	Team: Team # 5	CCRB Case #: 201311084	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Monday, 11/25/2013 6:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 5/25/2015	Precinct: 84
Date/Time CV Reported Mon, 11/25/2013 12:30 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 11/25/2013 12:30 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. CPT Maximo Tolentino	00000	891112	084 PCT

Officer(s)	Allegation	Investigator Recommendation
A.CPT Maximo Tolentino	Abuse: CPT Maximo Tolentino entered and searched § 87(2)(b) in Brooklyn.	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed the following complaint with the CCRB on November 25, 2013 via telephone (Encl. 4A-B). On November 25, 2013, at approximately 6:00 a.m., officers from the Intelligence Division in Brooklyn executed a search warrant at § 87(2)(b)'s home located at § 87(2)(b) in Brooklyn. The following allegation resulted:

- **Allegation A – Abuse of Authority: CPT Maximo Tolentino entered and searched** § 87(2)(b) **in Brooklyn.** § 87(2)(g) (b)

§ 87(2)(g)

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) *did not provide her pedigree information.*

CCRB Testimony

§ 87(2)(b) provided a telephone statement to the CCRB on December 2, 2013 (Encl. 5A).

On November 25, 2013, at approximately 6:00 a.m., at § 87(2)(b) of § 87(2)(b) in Brooklyn, there was a loud bang at the door. Police officers said "open the door." § 87(2)(b)'s father, § 87(2)(b) went to open the door but before he could open it, the officers broke the door. § 87(2)(b) described them as a Swat team with rifles. There were approximately ten of them and then a few plainclothes officers came in behind them. They put § 87(2)(b) against the floor and attempted to handcuff him but could not because he only has one hand. The officers pointed their flashlights and guns at everyone in the apartment. § 87(2)(b) had many family members at her house for the holidays. An officer that § 87(2)(b) said was named "Tellitino" said they had a warrant but did not show it. He was a heavyset white male with a mustache and was in his late 50s. This officer was identified through the investigation as Captain Maximo Tolentino of the 84th Precinct. § 87(2)(b) did not ask for the paperwork. § 87(2)(b) was told by an unknown officer said they were looking for drugs. The officers searched the apartment but did not find anything and did not arrest anyone. A female officer arrived to check on the family members while the officers searched the apartment.

Civilians Not Interviewed

§ 87(2)(b) and the rest of § 87(2)(b)'s family were not interviewed for this case § 87(2)(g)

Officers Not Interviewed:

No officers were interviewed for this case § 87(2)(g)

NYPD Documents

Search Warrant

A search for warrants done by CCRB's MAS unit yielded a positive result for a search warrant at § 87(2)(b)'s residence. The warrant was requested on § 87(2)(b) in Kings County by Sgt. David Cheesewright. It was executed by the Intelligence Division on November 25, 2013 and was supervised by Captain Maximo Tolentino (Encl. 7A).

Status of Civil Proceedings

- A Notice of Claim request was requested by the undersigned from the Comptroller's officer on January 22, 2014 and will be added to the case file upon receipt (Encl. 9C).

Civilian Criminal Conviction History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilians CCRB History

- § 87(2)(b) has filed the following CCRB complaints:

- § 87(2)(b)
[REDACTED]

Subject Officer CCRB History

- CPT Maximo Tolentino has been a member of the service for 27 years and there are no substantiated CCRB allegations against him (Encl. 2A).

Conclusion

Identification of Subject Officers

§ 87(2)(b) provided a name similar to CPT Tolentino which she obtained during the incident. Additionally, his name was included in the search warrant result from MAS as the officer supervising the execution of the entry and search. § 87(2)(g)
[REDACTED]

Allegations Not Pleaded

§ 87(2)(b) stated that her father, § 87(2)(b) was forcefully taken to the ground and officers attempted to handcuff him after he approached the front door. As per section 690.50 of the New York State Criminal Procedure Law (Encl. 1A-H)) an officer may use the necessary amount of force to overcome any possible resistance to the execution of the search warrant. § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]

Additionally, § 87(2)(b) alleged that officers came in with their guns pointed at all individuals in the apartment. There was also mention of § 87(2)(b)'s door being broken as the officers entered. § 87(2)(g)
[REDACTED]
[REDACTED]

Investigative Findings and Recommendations

- **Allegation A – Abuse of Authority: CPT Maximo Tolentino entered and searched § 87(2)(b) Apartment 1E in Brooklyn.**

It is undisputed that Captain Maximo Tolentino along with officers from the Intelligence Division entered and searched the home of § 87(2)(b) located at § 87(2)(b) § 87(2)(b) in Brooklyn.

Section 690.50 of the New York State Criminal Procedure Law (Encl. 1A-H) governs the lawful execution of search warrants. It states that a police officer may enter and search a location for which they have a valid search warrant. A police officer may enter and search the location and use force as necessary to overcome resistance to the execution of the warrant.

§ 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date